



CHAPTER xcix.

An Act to confirm an agreement between the Swansea A.D. 1912.
Improvements and Tramways Company and the mayor
aldermen and burgesses of the borough of Swansea to
authorise the said mayor aldermen and burgesses to
construct tramways and street improvements to confer
further powers upon them in regard to their tramways
electricity water and market undertakings and to make
further provision for the health local government and
improvement of the borough and for other purposes.

[7th August 1912.]

WHEREAS powers with regard to the construction of tram-
ways in the borough of Swansea and otherwise in relation
to the tramway undertaking of the Swansea Improvements and
Tramways Company were conferred upon that company by the
following Acts of Parliament and Order confirmed by Parliament
(namely):—

- The Swansea Improvements and Tramways Act 1874;
- The Swansea Improvements and Tramways Act 1878;
- The Swansea Tramways (Extension) Order 1879 which
was confirmed by the Tramways Orders Confirmation
Act 1879;
- The Swansea Tramways Act 1882; and
- The Swansea Improvements and Tramways Act 1897:

And whereas under the said Acts and the Tramways Act
1870 the mayor aldermen and burgesses of the borough of
Swansea (who are in this Act called “the Corporation”) have
power to acquire the said tramways at different periods and
provision is made in the said Acts for the granting of leases of
the tramways by the Corporation to the said company:

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And whereas in pursuance of powers conferred upon them by the Swansea Corporation Act 1902 and the Swansea and District Light Railways Order 1902 the Corporation have constructed tramways and light railways in the borough and have leased the same to the said company:

And whereas an agreement has been entered into between the Corporation and the said company in relation to the said tramways and light railways and the same is set forth in the First Schedule to this Act and it is expedient that such agreement should be confirmed:

And whereas it is expedient to empower the Corporation to construct in the borough the additional tramways and the street improvements referred to in this Act and to confer further powers upon them in connection with their tramways electricity and water undertakings:

And whereas the Corporation are the owners of a market in the borough which was erected upon land acquired by them in the year eighteen hundred and twenty-eight in pursuance of an Act passed in the ninth year of the reign of King George IV. chapter lxiv. intituled "An Act for establishing Markets at Swansea in the county of Glamorgan" and it is expedient that the part of such market which adjoins or abuts upon Oxford Street and Union Street should be converted into shops and other buildings and it being doubtful whether in view of the provisions contained in the said Act and of the restrictions which are alleged to attach to the said land it is within the powers of the Corporation to permit such conversion to take place it is expedient to confer upon the Corporation the powers with reference thereto contained in this Act and it is also expedient to make further provision in regard to the market undertaking of the Corporation:

And whereas under powers conferred upon them by the Swansea Corporation Water Act 1892 the Swansea Corporation Water Act 1902 and the Swansea Corporation Water Act 1905 the Corporation have constructed extensive waterworks and for that purpose they have in pursuance of the powers conferred upon them by those Acts raised the loans referred to in the Second Schedule to this Act and it is expedient to make provision as in this Act contained for the consolidation of such loans and for the repayment thereof:

And whereas in pursuance of the Lunacy Act 1890 the Corporation and the mayor aldermen and burgesses of the borough of Merthyr Tydfil (in this Act called "the Merthyr Tydfil

Corporation") have by their respective visiting committees and with the approval of the Secretary of State entered into an agreement for the provision of an asylum for the reception of lunatics and that asylum is proposed to be erected upon land situate in the parish of Cockett in the neighbourhood of the borough : A.D. 1912.

And whereas by an indenture dated the twenty-second day of November nineteen hundred and ten and made between the Corporation of the one part and the Merthyr Tydfil Corporation of the other part a copy of which is set forth in the Fourth Schedule to this Act the Corporation have agreed that in the event therein mentioned they will pay to the Merthyr Tydfil Corporation the annual sum therein referred to :

And whereas it is expedient that the said indenture should be confirmed and that powers should be conferred upon the Corporation and the Merthyr Tydfil Corporation for raising the loans required for and in connection with the purchase of land for and the erection and furnishing of the said asylum the cost of which is estimated to be two hundred and eighteen thousand two hundred pounds :

And whereas it is expedient to make further provision in regard to the streets and buildings in the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough be enlarged as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

(a) For and in connection with the purchase of land	£
for and the execution of the works authorised	
by Part II. (Street Improvements) of this	
Act - - - - -	98,000
(b) For and in connection with the construction of	
the tramways authorised by this Act -	11,494
(c) For the provision and erection of posts standards	
brackets conductors and other apparatus works	
and conveniences for the purpose of the	
tramways authorised by this Act - - -	1,800

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And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the twelfth day of December nineteen hundred and eleven after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *South Wales Daily Post* and *Cambria Daily Leader* local newspapers circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate and the district fund and general district rate :

And whereas the said resolution was published twice in the said newspapers and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twenty-first day of February nineteen hundred and twelve being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the *Borough Funds Act 1903* have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Glamorgan and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the *Swansea Corporation Act 1912.*

2. This Act is divided into Parts as follows:—

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- Part I.—Preliminary.
- Part II.—Street Improvements.
- Part III.—Tramways.
- Part IV.—Electricity.
- Part V.—Water.
- Part VI.—Streets Buildings Sewers and Drains.
- Part VII.—Infectious Disease and Sanitary Provisions.
- Part VIII.—Common Lodging-houses.
- Part IX.—Markets.
- Part X.—Police.
- Part XI.—Lands.
- Part XII.—Finance and Rating.
- Part XIII.—Miscellaneous.

Division of
Act into
Parts.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act (namely):—

Incorpora-
tion of Acts.

- (1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):
- (2) Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that the words in section 19 of that Act “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages” shall not apply to the Corporation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpreta-
tion.

“The Corporation” means the mayor aldermen and burgesses of the borough of Swansea;

“The borough” means the borough of Swansea;

“The council” means the council of the borough;

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“The town clerk” “the treasurer” “the surveyor” “the engineer” “the medical officer” and “the inspector of nuisances” mean respectively the town clerk the treasurer the surveyor the engineer the medical officer of health and the inspector of nuisances of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“The trustees” means the Swansea Harbour Trustees;

“The tramways company” means the Swansea Improvements and Tramways Company;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;

“Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction therefor;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under

any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1912.

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

“The Act of 1902” means the Swansea Corporation Act 1902.

PART II.

STREET IMPROVEMENTS.

5. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described together with all necessary or proper works and conveniences connected therewith or incident thereto. Power to construct street improvements.

The works hereinbefore referred to and authorised by this Part of this Act will be situate in the borough and are—

Widening No. 1 A widening of Neath Road on both sides thereof:

Widening No. 2 A further widening of Neath Road on the west side thereof:

Widening No. 3 A further widening of Neath Road on both sides thereof:

Widening No. 9 A widening of Waterloo Street on the east side thereof:

Widening No. 10 A further widening of Waterloo Street on the east side thereof:

Widening No. 11 A further widening of Waterloo Street on the west side thereof:

Widening No. 12 A further widening of Waterloo Street on the west side thereof:

Widening No. 13 A widening of Calvert Street on the south side thereof:

Widening No. 14 A widening of Caer Street on the south side thereof:

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Widening No. 15 A widening of Castle Street on the west side thereof:

Widening No. 16 A widening of Pleasant Street on the south side thereof:

Widening No. 24 A widening of Nelson Street on the south side thereof:

Widening No. 25 A widening of Greenfield Street on the south side thereof:

Widening No. 26 A further widening of Greenfield Street on the south side thereof:

Widening No. 27 A widening of Eaton Road on the east side thereof:

Widening No. 28 A further widening of Eaton Road on the west side thereof:

Widening No. 29 A widening of Penfillia Road on the north-west side thereof:

Widening No. 30 A widening of Llangyfelach Road on the east side thereof:

Widening No. 31 A widening of Market Street on the west side thereof:

Widening No. 32 A widening of Glantawe Street on both sides thereof commencing at a point 13 yards south of the intersection of the centre lines of Robert Street and Glantawe Street and terminating at a point 67 yards south of the intersection of the centre lines of Clase Road and Glantawe Street:

Widening No. 33 A widening of Clase Road on the south-westerly side thereof:

Widening No. 34 A widening of Woodfield Street on the east side thereof:

Widening No. 35 A widening of Sway Road on both sides thereof:

Widening No. 39 A widening of Ysgol Street on both sides thereof:

Widening No. 40 A widening of Carmarthen Road on both sides thereof.

Subsidiary
works.

6.--(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connection with the works authorised by this Part

of this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section. A.D. 1912.

(2) Provided that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

(3) Provided also that the Corporation shall not alter divert or otherwise interfere with any pipe wire or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

7. In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards. Limits of deviation.

8. Notwithstanding anything in this Act contained or shown upon the deposited plans and sections the following provisions for the protection of the Great Western Railway Company (in this section referred to as "the Great Western Company") shall unless otherwise agreed between the Corporation and the Great Western Company apply and have effect (that is to say):— For 'protection of Great Western Railway Company.

(1) The works authorised by this Act so far as they affect the railways or other property belonging to the Great Western Company shall be constructed under the superintendence (if given) and to the reasonable

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satisfaction of the engineer (hereinafter called "the engineer") of the Great Western Company and shall be constructed in accordance with plans sections and specifications to be previously submitted to and reasonably approved by the engineer or in case of difference between the Corporation and the engineer to be settled by an arbitrator to be appointed as hereinafter mentioned. Provided that if the engineer shall neglect to signify his approval or disapproval of such plans sections and specifications within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof:

- (2) The Corporation shall not in carrying into execution the powers of this Act for the construction of the Widening Works Nos. 1 and 2 alter or interfere with the structure of any bridge or other work belonging to the Great Western Company but if it be necessary to strengthen or underpin any works of the company such strengthening or underpinning shall be carried out by the company at the reasonable expense of the Corporation:
- (3) If by reason of any works or proceedings of the Corporation or of their contractors or workmen the said railways works or other property of the Great Western Company shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their expense and to the reasonable satisfaction of such engineer and in the event of their failing so to do or in case of emergency the Great Western Company may make good the same and recover the reasonable expense thereof from the Corporation and if any interruption shall be caused to the traffic on the said railways by reason of any works of the Corporation the Corporation shall make good and repay to the Great Western Company any loss damage or expense which they may sustain or be put to by reason of the construction of the said works or in respect of the interruption to the traffic on the said railways:
- (4) The Corporation shall at all times hereafter maintain the widenings before mentioned so far as the same

affect any railways or other property belonging to the Great Western Company in substantial repair and good order to the reasonable satisfaction of the engineer and if and whenever the Corporation fail so to do the Great Western Company may after giving seven days' notice in writing to the Corporation or in case of emergency without notice make good and do in and upon as well the lands of the Corporation as their own lands all such works repairs and things as may be reasonably requisite in that behalf and the reasonable amount of such expenditure shall be repaid to the Great Western Company by the Corporation: A.D. 1912.

(5) The Corporation shall construct all their works so far as the same pass under or affect the railways of the Great Western Company so as to leave undisturbed at all times the lines of railway and so as in no way to obstruct hinder or interfere with the free uninterrupted and safe user of the said railways or the traffic thereon and during the execution or repair of the said works the Corporation shall execute all such temporary works as the said engineer may reasonably require for the purpose of safeguarding the railway of the Great Western Company or preventing interruption to the traffic thereon and if in consequence of the execution or repairing of the said works the said railways of the Great Western Company or the traffic thereon are in any way obstructed hindered or interfered with the Corporation shall pay compensation to the Great Western Company in respect thereof and shall indemnify the Great Western Company against all costs charges and expenses to which the Great Western Company may be put through or in consequence of any such obstruction or hindrance or interference or in any way arising therefrom:

(6) Except as hereinafter provided nothing in this Act contained shall empower the Corporation to enter upon take or use any of the railway lands or other property of the Great Western Company without their consent in writing:

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- (7) The Corporation may purchase and the Great Western Company shall sell the surface at the level of the existing roadway of so much of the land coloured pink on the plan signed in duplicate by William Wylie Grierson on behalf of the Great Western Company and by George Bell on behalf of the Corporation as is the property of the Great Western Company and the provisions of the Lands Clauses Acts shall apply to and in respect of such purchase and sale Provided always that the Great Western Company's rights of frontage to the existing road shall be transferred to the new boundary and that the Corporation shall properly and efficiently make up the roadway on the said lands and at their own expense fence off the said lands from the adjoining lands of the Great Western Company with such fences or walls as the Great Western Company may reasonably require Provided further that the Great Western Company shall be entitled at any time and from time to time to execute any works for the repair or maintenance of their railway on or under the said lands without being liable to pay compensation to the Corporation in respect thereof:
- (8) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering or maintaining their railways bridges or works under their existing powers by reason of the existence of any works of the Corporation constructed under the powers of this Act across or under the same shall be paid by the Corporation:
- (9) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Corporation with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Corporation or either of them and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PART III.

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TRAMWAYS.

9.—(1) The agreement dated the ninth day of November nineteen hundred and eleven and made between the Swansea Improvements and Tramways Company of the one part and the Corporation of the other part and set forth in the First Schedule to this Act is hereby confirmed and made binding on the parties thereto and the Corporation and the said company are hereby empowered to carry the same into effect accordingly.

Confirmation of agreement with tramways company and repeal of provisions of Swansea Tramways Act 1882.

(2) Section 34 (Provisions if Corporation purchase tramways &c.) and section 35 (As to purchase of existing tramways) of the Swansea Tramways Act 1882 are hereby repealed.

10.—(1) So long as any of the tramways or light railways referred to in the agreement set forth in the First Schedule to this Act are owned or worked by or leased to the tramways company the provisions of this section shall apply in substitution for the provisions relating to the running of carriages for artisans mechanics and daily labourers contained in the Acts and Orders relating to such tramways and light railways.

Cheap fares for working classes.

(2) The tramways company shall on every day in the year (Sundays Christmas Days Good Fridays and Bank Holidays excepted) permit artisans mechanics and daily labourers (which words shall have the same meaning as in the Swansea Improvements and Tramways Act 1874) to travel by any of the carriages running on the tramways or light railways owned or worked by or leased to the tramways company at fares not exceeding one halfpenny per mile or fraction of a mile with a minimum fare of one penny Provided that--

(a) Every such artisan mechanic or daily labourer shall produce on demand to the conductor of the carriage or other authorised officer of the tramways company a certificate from his union or employer or such other evidence as shall be satisfactory to the tramways company that he is an artisan mechanic or daily labourer as above defined:

(b) The tramways company shall not be bound to run special carriages for the conveyance of such artisans mechanics and daily labourers but shall always run a

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sufficient service of carriages between the hours of five and seven in the morning of every day in the year except such days as aforesaid.

(3) If complaint is made to the Board of Trade that a service of carriages is not provided by the tramways company in pursuance of this section the Board of Trade after considering the circumstances of the locality may order the tramways company to provide such service as may appear to the Board to be reasonable.

(4) The company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order made by the Board of Trade under this section.

Power to
make tram-
ways.

11.—(1) Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections with all proper rails plates junctions turn-outs crossings passing-places posts poles brackets wires waiting-rooms carriage-houses sheds depôts buildings engines works and conveniences connected therewith and the Corporation may supply the electrical energy required for working such tramways by themselves or their lessees and for lighting the cars used thereon Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 (Power to undertakers to alter position of pipes and wires) of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

(2) The tramways hereinbefore referred to and authorised by this Act will be situate in the borough and are—

Tramway No. 1 (Double line 10·80 chains or thereabouts in length) commencing in High Street by a junction with the existing tramway at a point 3 chains north of the junction of College Street with High Street and terminating in Castle Bailey Street at a point 0·90 of a chain south of the junction of Castle Bailey Street and Temple Street :

Tramway No. 2 (Single line 1·30 chains or thereabouts in length) commencing in Castle Street by a junction with Tramway No. 1 at a point 0·80 of a chain north of the junction of Temple Street with Castle Bailey Street and

terminating in Temple Street at a point 0·90 of a chain west of Castle Street as the same is intended to be widened: A.D. 1912.

Tramway No. 3 (Single line 5·50 chains or thereabouts in length) commencing in Oxford Street by a junction with the existing light railway at a point 1·30 chains east of Beach Street and terminating in St. Helen's Road at a point 0·50 of a chain south of Oxford Street:

Tramway No. 4 (Single line 1·10 chains or thereabouts in length) commencing in Harbour Road by a junction with the existing tramway at a point 0·30 of a chain south of Mount Street and terminating in Quay Parade at a point 0·70 of a chain north of Mount Street:

Tramway No. 5 (3 furlongs 9 chains or thereabouts in length whereof 2 furlongs 8 chains will be single line and 11 chains will be double line) commencing in Carmarthen Road by a junction with the existing tramway at a point 2·60 chains north-west of Approach Road and terminating in Carmarthen Road at a point opposite the centre of Cave Street:

Tramway No. 6 (3 furlongs 5·10 chains or thereabouts in length whereof 2 furlongs 3·10 chains will be single line and 1 furlong 2 chains will be double line) commencing in Port Tennant Road by a junction with the existing tramway at a point 2·50 chains west of Ysgol Street and terminating in Wern Fawr Road at a point 0·20 of a chain west of Gelly Grafog Road.

12. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of tramways.

13.—(1) Subject to the provisions of this Act the tramways authorised by this Act shall be deemed for all purposes part of the tramway undertaking of the Corporation and the following provisions of the Act of 1902 shall so far as the same are applicable and are not inconsistent with the provisions of this Act extend and apply with any necessary modifications to and in relation to such tramways (namely):— Tramways to be part of tramway undertaking of Corporation and Act of 1902 to apply thereto.

Section 6 Gauge of tramways;

Section 7 Rails of tramways;

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- Section 8 Plan of proposed mode of construction ;
- Section 9 Tramways to be kept on level of surface of road ;
- Section 10 Penalty for not maintaining rails and roads ;
- Section 11 Alteration of tramways ;
- Section 12 Temporary tramways may be made where necessary ;
- Section 14 Inspection by Board of Trade ;
- Section 18 Motive power ;
- Section 19 Special provisions as to use of electrical power ;
- Section 20 For protection of Postmaster-General ;
- Section 21 Works for mechanical power ;
- Section 22 Apparatus used for mechanical power to be deemed part of tramway ;
- Section 23 Attachment of brackets to buildings ;
- Section 24 Byelaws ;
- Section 25 Amendment of Tramways Act 1870 as to byelaws by local authority ;
- Section 26 Rates for passengers ;
- Section 27 Passengers' luggage ;
- Section 28 Rates for goods ;
- Section 29 Corporation not bound to carry animals and goods ;
- Section 30 As to fares on Sundays or holidays ;
- Section 31 Cheap fares for labouring classes ;
- Section 32 Periodical revision of rates and charges ;
- Section 33 Power to work tramways ;
- Section 34 Regulations ;
- Section 35 Power to acquire patent rights ;
- Section 36 Penalty for malicious damage ;
- The First Schedule.

(2) Provided that—

- (a) The powers of section 11 (Alteration of tramways) of the Act of 1902 shall not be exercised with reference to the tramways authorised by this Act except with the consent of the Board of Trade ;
- (b) In the exercise of the powers of section 21 (Works for mechanical power) of the Act of 1902 with

reference to the tramways authorised by this Act A.D. 1912.
no post or other apparatus shall be erected on the
carriageway except with the consent of the Board
of Trade.

14.—(1) The Corporation may erect and maintain shelters or waiting-rooms for the accommodation of passengers on the tramways of the Corporation and of the servants of the Corporation and may use for that purpose portions of the public streets or roads. Shelters or waiting-rooms.

(2) Provided that notwithstanding anything in this section contained no shelter or waiting-room shall be erected or maintained in any street or road so as to interfere with or render less convenient the access to or exit from any station of any railway company except with the consent of such company. Any difference arising under this section between the Corporation and any railway company shall be determined by an arbitrator to be appointed failing agreement by the Board of Trade.

15.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Corporation in connection with the tramways authorised by this Act and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:— Use of tramway posts by Postmaster-General.

(a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:

(b) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain. Any difference as to any matter referred to in such notice shall be determined as hereinafter provided:

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- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:
- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as hereinafter provided:
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants:
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing

any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided:

- (i) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants:
- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same. Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their tramways or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-

A.D. 1912. — General and such company or person respectively shall be determined as hereinafter provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression “the Corporation” includes their lessees;

The expression “telegraph” has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

PART IV.

ELECTRICITY.

Erection of
sub-stations.

16.—(1) The Corporation may upon the following lands when acquired by them erect and maintain sub-stations and stations for converting storing distributing or transforming electrical energy together with all works and apparatus necessary therefor or ancillary thereto and may use the same for any purposes of the electricity undertaking of the Corporation except the generation of electricity.

(2) The lands hereinbefore referred to are situate in the borough and are—

A piece of land bounded on the north by an occupation road at the back of Uplands Crescent on the west by a road at the back of Gwydr Crescent on the south by the back of Eaton Crescent and on the east by the said occupation road:

A piece of land bounded on the south by Westbury Street on the west by Brynymor Crescent and on the north and east by other part of the premises known as Llwynybryn:

A piece of land bounded on the east by the railway of the Swansea and Mumbles Railways Limited on the west by the Strand on the south by Baker Street and on the north by the offices of the Corporation Electricity Department.

Period of
error in de-
meters.

17.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous

registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. A.D. 1912.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

18. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electricity or meter rent are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises. Power to refuse to supply electrical energy in certain cases.

19.—(1) The Corporation may on the application of the owner or occupier of any premises within the area of supply abutting on or erected or being erected in any street laid out or made but not dedicated to public use supply such premises with electrical energy and may lay down take up alter relay repair remove and renew in across along or out of such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Swansea Electric Lighting Order 1889 and of the Electric Lighting Acts 1882 to 1909 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section. Power to lay electric lines &c. in streets not dedicated to public use.

(2) Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of a railway company nor shall the Corporation in carrying out the works authorised by this section obstruct or interfere with the convenient access to any such street.

20.—(1) The Corporation may construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use sub-stations transforming stations and other works in connection with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient. Power to construct electrical sub-stations under streets.

A.D. 1912.

(2) Provided that no such sub-stations transforming stations or other works connected therewith shall be constructed within a distance of twenty-five yards of any property of any railway company except with the consent of such company.

As to ex-
penses under
Part IV. of
Act.

21. Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act and for which no other provision is made by this Act shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of section 7 (Expenses of local authority) and section 8 (Power of local authority to borrow money) of that Act shall extend and apply accordingly to such expenses.

PART V.

WATER.

Compensa-
tion water to
Blaenant
Ddu Brook.

22.—(1) Notwithstanding anything contained in the Swansea Local Board of Health Waterworks Act 1860 and the Acts amending the same or otherwise the Corporation may if they think fit supply the compensation water which they are required by those Acts to cause to flow into the Blaenant Ddu Brook out of any of their existing reservoirs.

(2) Provided that—

(a) Nothing in this section shall alter the conditions and stipulations as to the quantity of compensation water as to the place where the same is to be discharged and the penalties or other remedies for failure to supply the same contained in the said Acts with reference to the compensation water in respect of the Blaenant Ddu Brook:

(b) The Corporation shall supply to the Blaenant Ddu Brook water of substantially the same quality as that now supplied out of the Blaenant Ddu Reservoir.

Power to lay
water pipes
in streets not
dedicated to
public use.

23.—(1) The Corporation may on the application of the owner or occupier of any premises within their limits for the supply of water abutting on or erected or being erected in any street laid out or made but not dedicated to public use supply such premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if the street were a street within the meaning of those Acts.

(2) Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of a railway company nor shall the Corporation in carrying out the works authorised by this section obstruct or interfere with the convenient access to any such street. A.D. 1912.

24. The sections of this Act whereof the marginal notes respectively are "Power to lay electric lines &c. in streets not dedicated to public use" and "Power to construct electrical sub-stations under streets" and "Power to lay water pipes in streets not dedicated to public use" shall not except with the consent of the trustees under their common seal apply to any street or road belonging to the trustees nor shall the Corporation in exercising the powers of these sections obstruct or interfere without such consent as aforesaid with the convenient access to any such street or road. For protection of Swansea Harbour Trustees.

25.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Corporation may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stop-cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus The Corporation shall where necessary provide reasonable means of access for persons bonâ fide going to or coming from the houses or stations or other premises of any railway company in any streets so stopped up. Detection of waste of water.

(2) Provided that the Corporation shall not interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except under and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

A.D. 1912.

Byelaws for preventing waste &c. of water.

26.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours’ notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation as the water rates and charges in respect of the premises are recoverable.

(4) As from the date on which any byelaws made in pursuance of this section shall come into operation the following sections of the Swansea Local Board of Health Waterworks Act 1860 shall be repealed (namely):—

Section 54 Cisterns to be supplied with proper ball-cocks or other apparatus;

Section 55 Cisterns &c. to be so constructed as to prevent waste or the flow or return of impure matter into the mains &c.;

Section 56 Regulations may be made by the local board for preventing waste;

Section 57 Penalty for suffering pipes &c. to be out of repair;

Section 58 Local board may in case of neglect repair pipes &c. and charge expenses.

Supply of water by hose pipe to stables &c.

27. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept

the Corporation may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rents. A.D. 1912.

28. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Corporation not bound to supply water to several houses by one pipe.

29. The Corporation shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Supply of water to houses partly used for trade &c.

30. The price to be charged by the Corporation for a supply of water by measure other than a supply under section 49 (For supply of vessels) of the Swansea Local Board of Health Waterworks Act 1860 as amended by section 27 (Charge for supply to vessels) of the Swansea (Corporation) Water Act 1884 shall not exceed one shilling and sixpence per thousand gallons. Price of supply by measure.

31. The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same. Power to Corporation to supply materials.

32.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a fine not exceeding Injuring meters &c.

A.D. 1912., five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Register of
meter to be
prima facie
evidence.

33.—(1) Where water is supplied by measure the register of the meter shall be *prima facie* evidence of the quantity of water consumed.

(2) Any dispute as to such quantity shall be determined on the application of either party by a court of summary jurisdiction who may order by whom the costs of the proceedings shall be paid and the decision of such court shall be final and binding upon all parties.

Power to
Corporation
to repair
communica-
tion pipes.

34. If it should appear to the Corporation that by reason of any injury to or defect in any communication pipe which is situate in a highway and which the Corporation are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Corporation to execute such repairs as they may think necessary or expedient in the circumstances

of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. A.D. 1912.

35. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer. Maintenance of common pipe.

36. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it either be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the water department of the Corporation or be given by the consumer personally at that office. Notice of discontinuance.

PART VI.

STREETS BUILDINGS SEWERS AND DRAINS.

37. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any other Act or byelaw for the time being in force within the borough be deemed to be a new street. Continuation of existing street to be deemed new street.

38.—(1) When any street or road repairable by the inhabitants at large is in the opinion of the Corporation narrow or inconvenient or without sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Corporation propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by the town clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name Corporation may define future line of streets.

A.D. 1912. and address they can ascertain No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Corporation may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Corporation sell the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and the same when purchased shall vest in the Corporation as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889.

(3) Whenever in any of the above cases the Corporation shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Corporation requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Corporation under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person shall offend against this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Application
of purchase
money in
certain cases.

39. The provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase money or compensation coming to parties having limited interests or prevented from treating or not making title are hereby incorporated with this Act and shall apply to any purchase money or compensation payable under the foregoing provisions of this Part of this Act.

Further pro-
vision as to
new streets.

40.—(1) When a road or lane is about to become in consequence of building operations a new street within the

meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Corporation may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force in the borough require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land. A.D. 1912.

(2) Provided that if and when the land on the opposite side of such road or lane shall be in course of being built on the owner of such land shall complete the widening of such road or lane so as to comply in all respects with the byelaws of the Corporation.

41.—(1) The owners or occupiers of all lands shall construct such works as may be necessary for the purpose of preventing as far as reasonably practicable the soil sand and other débris of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully or cause the houses in such street to be flooded. For preventing soil from being washed into streets.

(2) If any person shall for one month after notice in writing from the Corporation fail in any respect to comply with the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purpose of this section “public street” means a street repairable by the inhabitants at large.

42. Where premises abutting upon any street are so situate that the surface water from such premises flows on to the footpath of such street the owner of such premises shall within one month after service of a notice by the Corporation for that purpose execute such works as may be necessary to prevent the water from such premises from flowing over the footpath and in default of compliance with such notice within the period aforesaid such owner shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. For preventing water flowing on footpaths.

43.—(1) Whenever any person erecting any building shall be desirous of leaving an opening or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by Forecourts to be fenced off from streets.

A.D. 1912. the Corporation be well and sufficiently fenced off from the footpath or street.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Street
orderly bins.

44. The Corporation may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine.

Courts to be
flagged and
drained.

45.—(1) The owner or owners of the premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or of any part of such court yard or passage shall flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same or such part thereof as the Corporation require and keep such flagging asphaltting concreting or paving and drain in good repair.

(2) If such owner or owners shall for one month after notice in writing from the Corporation fail in any respect to comply with the provisions of subsection (1) of this section he or they shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners.

As to dan-
gerous build-
ings.

46.—(1) In any case where a building shall have been reported to the Corporation as dangerous to the inmates thereof or persons working therein or in the case of any building which may appear to the Corporation on the report of any duly qualified officer to be dangerous to the inmates or persons working therein the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk enter at any hour of the day between nine o'clock in the morning and six o'clock in the evening with such other persons as he may deem necessary upon such building and examine and inspect the same.

(2) If upon such examination and inspection it shall appear necessary that any works shall be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures in the borough.

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47. The Corporation may make byelaws with respect to the materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings and the thickness and construction of the walls of all ovens and furnaces wholly or partially built after the passing of this Act.

Byelaws as to building materials.

48.—(1) In the case of any building to be connected with any sewer and intended to be erected on lands where by reason of mining operations subsidences may be reasonably expected to occur the Corporation may regulate and prescribe the level at which the ground floor of any such building is to be constructed and at the time of the deposit of plans and sections of any such building the Corporation may require any person intending to construct the same to specify the proposed level of the ground floor thereof.

Construction of buildings on lands liable to subsidence.

(2) Any person failing to comply with the requirements of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

49. Notwithstanding any provisions contained in any public or local Act or byelaw in force within the borough regulating the construction of buildings the Corporation shall have power to relax or modify such provisions in the following cases and subject to the following provisions (that is to say):—

Buildings of iron steel or reinforced concrete.

(1) Where a person is desirous of erecting an iron steel or reinforced concrete building or structure he shall make an application to the Corporation accompanied by complete plans sections and elevations of the proposed buildings with such details and other particulars as to the construction thereof as may be required by the Corporation:

(2) The Corporation if satisfied with such plans sections elevations details and particulars shall signify their

A.D. 1912.

approval of the same in writing and thereupon the building may be constructed according to such plans sections elevations details and particulars :

- (3) The Corporation may for the purpose of regulating the procedure in relation to such applications and in reference to the excavations for or foundations of or the erection of such building and structure make and issue such general rules as they think fit as to the place time and manner of making applications and as to the plans sections elevations details and particulars to be deposited with the Corporation and as to the precautions to be taken in connection with any such excavation foundation or erection for safeguarding the stability of the street and the property therein and the public safety and convenience and otherwise and as to any other matter or thing connected therewith respectively.

Area of habitable rooms.

50.—(1) Every new dwelling-house shall be provided with at least one living room with a floor area of not less than one hundred and thirty-two square feet and one bedroom with a floor area of not less than one hundred and ten square feet.

(2) No bedroom or other habitable room in any such dwelling-house shall have less floor area than seventy square feet.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Pantries to be provided in new houses.

51. The owner of any dwelling-house the erection of which is commenced after the passing of this Act which is not provided with sufficient and suitable food storage accommodation who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Erection of buildings to greater height than adjoining buildings.

52.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1912.

53.—(1) Every new building exceeding thirty-five feet in height used or intended to be used as a tavern hotel restaurant hospital boarding-house common lodging-house or school shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein or resorting thereto as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto. Means of escape from buildings in case of fire.

(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

54.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building shall if practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such work or operation sufficient water or other closets and urinals. Sanitary conveniences for workmen engaged on buildings.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

55.—(1) Every pipe from any slop-stone bath or basin in a building shall where practicable be carried through the external wall of such building and be constructed so as to discharge in the open air on the outside of such building over a channel leading to a gulley grating at a suitable distance and every gulley grating or other inlet to the drains shall be properly trapped. Pipes from slop-stones to be disconnected from sewers.

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(2) Any person neglecting or refusing for a period of twenty-eight days to comply with a notice from the Corporation requiring him to carry out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(3) Provided that this section shall only apply to buildings existing at the passing of this Act and that any expense incurred in respect of any such building beyond a sum of two pounds shall be borne by the Corporation.

Soil-pipes to be ventilated.

56.—(1) The soil-pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or (subject to the provisions of section 37 (Water or stack pipes not to be used as ventilating shafts) of the Public Health Acts Amendment Act 1907) by such other method as the Corporation shall direct.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Corporation under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to require water-courses on building land to be culverted.

57.—(1) If any watercourse or ditch situate upon land laid out for building or on which any such land abuts requires in the opinion of the Corporation to be wholly or partially filled up or covered over the Corporation may by notice in writing require the owner or owners of such land to substitute for such watercourse or ditch a pipe drain or culvert.

(2) Provided that nothing in this section shall authorise the Corporation to require the filling up or covering over of any watercourse or ditch wholly or partly belonging to any person other than the owner of the land so laid out for building.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Watercourse not to be covered in except in accordance with approved plan.

58.—(1) Before the owner of any land shall culvert or cover over any watercourse thereon forming part of the natural drainage of the area involved he shall submit for the approval of the Corporation plans sections and specifications of such watercourse and the method of culverting or covering over the same and the Corporation may subject as hereinafter provided

require such owner to so construct any such culvert or so to cover over any such watercourse as to secure the free and uninterrupted passage of the water flowing in any such water-course: A.D. 1912.

Provided that—

(a) No requirement of the Corporation under this section shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted;

(b) If with the consent of such owner the Corporation shall require him to make provision for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Corporation.

(2) If any difference shall arise between the Corporation and such owner as to the expediency or necessity of the works required by the Corporation to be executed or otherwise under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

59. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation. Corporation may require enlarged sewer.

60. The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers Power to lay drains in private streets.

A.D. 1912. hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction.

Corporation may order houses to be drained by a combined drain.

61.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them.

Notice of intention to repair drains.

62.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Corporation without giving to the Corporation or to the medical officer twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the inspector of nuisances or to any officer of the Corporation authorised in writing by the medical officer for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Penalty on occupier refusing execution of Act.

63. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part of this Act or under

any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. A.D. 1912.

64. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of this Part of this Act as if those purposes had been mentioned in the said section 102. Power of entry.

65. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connection with their railway under any Act of Parliament. Saving as to railway companies.

66. The provisions of this Part of this Act and of any byelaws made thereunder shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by the trustees as a part of or in connection with their undertaking under any Act of Parliament. Saving for Swansea Harbour Trustees.

PART VII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

67.—(1) Any person being a manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity who— For regulating manufacture and sale of ice-cream &c.

- (a) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

A.D. 1912.

- (b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or
- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) Section 94 (For regulating manufacture and sale of ice-cream &c.) of the Act of 1902 is hereby repealed.

Inspection of premises of dealer in ice-cream.

68.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

No place used for storage &c. of human food to be used as a sleeping place.

69.—(1) No room shop or other part of a building in which any food is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings but no penalty shall be imposed for an offence against this section if in the opinion of the court the occupation of such room shop or other part of a building in contravention of this section would not have caused risk of infection or of contamination of food. A.D. 1912.

(3) The Corporation or any of their officers shall have the like right of entry into any such room shop or other part of a building as they would have had under section 102 (Power of entry of local authority) of the Public Health Act 1875 if there had been a nuisance arising in respect of any business carried on therein.

(4) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

70. The provisions of section 34 (Power for Privy Council to make orders relative to dairies cowsheds and milkshops) of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the borough for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets. Provisions as to retailers of milk.

71.—(1) For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the consent in writing of the Corporation but a trade business or manufacture shall not be deemed to be Defining the establishing of a new business.

A.D. 1912. — established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on any offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) The expression "offensive trade" in this section means any trade which is for the time being an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907.

Discontin-
uance of
offensive
trades..

72.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and in the opinion of the Corporation it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of any offensive trades.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay compensation to such person for any loss sustained by him in consequence of the action of the Corporation.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

73. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease within the borough the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

A.D. 1912.
Power to
compensate
persons
ceasing em-
ployment.

74. If any dairyman shall at the request of the Corporation stop his milk supply within the borough on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the borough the Corporation may make compensation to him for any loss occasioned by such stoppage.

Compensa-
tion to dairy-
men.

75.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 (Notification of infectious disease) of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for mangling or washing from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

Persons to
furnish
names of
laundrymen
to whom
clothes from
infected
houses are
sent.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

76.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information
to be fur-
nished to
medical
officer and
penalty for
furnishing
false infor-
mation.

(2) Any occupier knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

77.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school or any part thereof which has been closed by order of the Corporation or of the education committee of the council with the

To prevent
spread of
infectious
disease
amongst

A.D. 1912.
children in
Sunday
schools.

view of preventing the spread of infectious disease or of a child who with the same view has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school in the borough without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

Houses
infested with
vermin to be
cleansed.

78.—(1) If the medical officer has reasonable cause to suppose that any house is infested with vermin he or any inspector of nuisances may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wallpaper from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

A.D. 1912.

79.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleaning and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is a child) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case on the like certificate may cause any such person who does not consent or whose parent or guardian (where the person is a child) does not consent to be removed therefrom to any such temporary shelter or house accommodation where two justices on the application of the Corporation and on being satisfied of the necessity of the removal make an order for the removal subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal to be effected and the conditions of any order satisfied without charge to the person removed or to the parent or guardian of that person.

Cleansing of
verminous
persons.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such justices shall cease his employment in order to comply with such order the Corporation may make compensation to him for any loss he may suffer thereby.

(4) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human

A.D. 1912. habitation or any boat lying in any river dock canal or other water within the borough and used for the like purpose.

Regulation
dustbins.

80.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable galvanised iron or enamelled iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such bins shall be of such size and construction as may be approved by the Corporation.

(2) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

(3) Provided that this section shall not apply to any ashpits or any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

Penalty for
throwing
rubbish into
streams.

81. Every person who throws casts deposits or by any other means conveys or causes to be conveyed any solid matter whatsoever into any stream or brook within the borough so as to interfere with the due flow of such watercourse shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Watercourse
choked up
to be a nuisance under
Public
Health Act
1875.

82. Any river stream or watercourse or any part or parts thereof respectively so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto shall be deemed to be a nuisance within the meaning of section 91 (Definition of nuisances) of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health.

Power to
appoint-
additional
inspectors of
nuisances.

83. The Corporation may appoint more than one inspector of nuisances and sections 189 (Appointment of officers of urban authority) and 191 (As to medical officer of health &c.) of the Public Health Act 1875 shall for the purposes of the execution of that Act within the borough be construed accordingly.

Public
notice to be
given of
provisions of

84.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or

circulating in the borough and by a notice affixed outside the Guildhall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. A.D. 1912.
this Part of
Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

85. Any expenses of the execution by the Corporation of this Part of this Act shall be defrayed out of the district fund. Expenses
under Part
VII. of Act.

PART VIII.

COMMON LODGING-HOUSES.

86.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of December in every year. Registration
of common
lodging-
houses.

(2) Any person aggrieved by a refusal to renew the registration of a common lodging-house may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as they think fit and to award costs.

(3) Every person who after the thirty-first day of December nineteen hundred and twelve shall keep a common lodging-house without the registration of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

87. Whenever the medical officer shall report in writing to the Corporation that there is a prevalence of dangerous infectious disease in the borough or any adjoining county or neighbouring county borough and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the borough by persons resorting to common lodging-houses the Corporation may by resolution declare that by reason of the prevalence of the dangerous infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and Power medi-
cally to ex-
amine in-
mates of com-
mon lodging-
houses where
infectious
disease is
supposed to
exist.

A.D. 1912. subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation having regard to the circumstances of the case shall in the resolution determine (that is to say):—

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the dangerous infectious disease named in the resolution of the Corporation may exist or has recently existed in any common lodging-house in the borough medically examine any person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease. Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings:
- (2) A copy of every such resolution shall forthwith be sent by the Corporation to every keeper of a registered common lodging-house in the borough and to the Local Government Board:
- (3) Unless approved by the Local Government Board any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Local Government Board:
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

Notice to
common
lodging-
house
keepers.

88.—(1) Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house within the borough either personally or by leaving the same at or sending the same to the common lodging-house.

(2) A copy of a notice endorsed with a certificate purporting to be signed by the town clerk that such notice has been served in accordance with the requirements of the last preceding subsection shall be sufficient evidence that the provisions of such subsection have been complied with.

PART IX.

A.D. 1912.

MARKETS.

89.—(1) Notwithstanding anything contained in the Act 9 George IV. chapter lxiv. or in the Acts amending the same and notwithstanding any special covenant or condition subject to which the Corporation may have acquired the land forming the site of their market in the borough the Corporation may with the approval of the Local Government Board and subject to such conditions as they may prescribe appropriate the part of the market and of the site thereof that adjoins or abuts upon Oxford Street and Union Street for the purposes of shops and other buildings and may erect and maintain shops and buildings thereon but such approval shall not be given until after the Local Government Board have held a local inquiry.

Conversion of part of market into shops.

(2) The Corporation may sell lease or otherwise dispose of any lands appropriated in pursuance of subsection (1) of this section and any shops or other buildings erected thereon for such consideration for such period and upon and subject to such terms and conditions as they may think fit.

(3) Any capital money received by the Corporation upon the sale leasing or disposal of lands shops or buildings in pursuance of this section shall be applied in or towards the extinguishment of any loan raised by the Corporation for the purposes of their market undertaking and for the time being outstanding or to such other purposes as the Corporation with the approval of the Local Government Board may determine.

(4) Any expenditure incurred by the Corporation in pursuance of this section other than expenditure defrayed out of borrowed money shall be defrayed out of the revenue of the market undertaking of the Corporation or out of the borough fund and any revenue received by them under this section shall be deemed to be revenue of that undertaking.

90.—(1) Notwithstanding anything contained in the Swansea Municipal Corporation Act 1863 the Corporation may demand and receive for the use of their markets and of the stalls and standings therein and in respect of animals and things brought into the markets or exposed for sale therein such stallages rents and tolls as the Corporation may from time to time appoint not exceeding such stallages rents or tolls as may for the time being be prescribed by the Local Government Board upon the application of the Corporation and any stallages rents and tolls

Revision of market tolls.

A.D. 1912. so prescribed shall be substituted for the stallages rents or tolls specified in Schedule A. to the said Act of 1863.

(2) Unless and until any stallages rents and tolls shall be prescribed by the Local Government Board in pursuance of this section nothing in this section contained shall affect the right of the Corporation to demand and receive the stallages rents and tolls which they are now authorised to take.

Removal of animals suspected of disease.

91. The market manager any officer of the market the inspector of nuisances or any constable may remove and exclude from any market of the Corporation all animals which after inspection by a duly registered veterinary surgeon shall be suspected by such surgeon to be affected with disease.

Removal and exclusion from market of animals not fit for food.

92. The market manager any officer of the market the inspector of nuisances or any constable may remove and exclude from any market of the Corporation any old emaciated or diseased animal which in the opinion of a duly registered veterinary surgeon or of the medical officer is unfit for human food.

Power to establish cold air stores &c.

93. The Corporation may construct and maintain in connection with their markets a refrigerator or cold-air store with all machinery apparatus and appliances necessary for the proper working and user thereof and for the storage and preservation of meat and other articles of food and may demand and take in respect of the use of any such refrigerator or cold-air store such charges as they may determine.

PART X.

POLICE.

Street cries.

94. Every person who shall on Sunday in any street or public place within the borough call or shout or ring any bell or use any other noisy instrument for the purpose of selling or advertising any newspaper journal or serial shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to inspect and certify taximeters.

95.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage plying for hire within the borough to be tested and inspected before being first used and at such reasonable intervals of time as the Corporation may require and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the

expenses of such testing inspection and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage. A.D. 1912.

(2) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

PART XI.

LANDS.

96. Subject to the provisions of this Act the Corporation may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the following purposes:— Power to take lands.

(1) For the purposes of Part II. (Street Improvements) of this Act and for the purpose of providing space for the erection of buildings adjoining or near to any street the widening or improvement of which is authorised by this Act:

(2) For the purposes of Part IV. (Electricity) of this Act.

97. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act. Period for compulsory purchase of lands.

98.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Costs of arbitration &c. in certain cases.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of

A.D. 1912. the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

Power to purchase additional lands by agreement.

99. The Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed ten acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

PART XII.

FINANCE AND RATING.

Power to borrow.

100.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenues funds and rates mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the fourth column thereof (namely):—

1.	2.	3.	4.
Purpose.	Amount.	Charge.	Period for Repayment.
(a) For and in connection with the purchase of land for and the execution of the works authorised by Part II. (Street Improvements) of this Act.	£ 98,000	The district fund and general district rate and the revenue of the tramway undertaking of the Corporation and the borough fund and borough rate in such proportions as the Corporation shall determine.	Forty-five years from the date or dates of borrowing.

1.	2.	3.	4.	A.D. 1912.
Purpose.	Amount.	Charge.	Period for Repayment.	
(b) For and in connection with the construction of the tramways authorised by this Act.	£ 11,494	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	Thirty years from the date or dates of borrowing.	
(c) For the provision and erection of posts standards brackets conductors and other apparatus works and conveniences for the purpose of the tramways authorised by this Act.	1,800	The revenue of the tramway undertaking of the Corporation and the borough fund and borough rate.	Twenty years from the date or dates of borrowing.	
(d) For paying the costs charges and expenses of this Act.	The sum requisite.	The borough fund and borough rate and the district fund and general district rate.	Five years from the passing of this Act.	

(2)—(a) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of the tramway undertaking of the Corporation and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act (other than purposes of that undertaking) or for the purposes of the market undertaking of the Corporation.

(b) In order to secure the repayment of the money borrowed under this subsection and the payment of the interest thereon the Corporation may mortgage or charge—

As regards money borrowed with the consent of the Board of Trade the revenue of the tramway undertaking of the Corporation and the borough fund and borough rate;

As regards money borrowed with the consent of the Local Government Board such fund rate or revenue as the Board may prescribe.

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board with whose consent it is borrowed.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

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Power for
Corporation
and Merthyr
Tydfil Cor-
poration to
borrow for
lunatic
asylum.

101.—(1) The Corporation and the Merthyr Tydfil Corporation may respectively from time to time independently of any other borrowing power borrow at interest sums not exceeding in the case of the Corporation one hundred and forty-five thousand four hundred and sixty-six pounds and in the case of the Merthyr Tydfil Corporation seventy-two thousand seven hundred and thirty-three pounds for and in connection with the purchase of land for and the erection and furnishing of a lunatic asylum for the borough and for the borough of Merthyr Tydfil and in order to secure the repayment of the sums borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the borough fund and borough rate and the Merthyr Tydfil Corporation may mortgage or charge the borough fund and borough rate of the borough of Merthyr Tydfil.

(2) All money borrowed under this section shall be repaid within the following periods from the date or dates of borrowing the same and those periods shall be the prescribed periods for the purposes of this Act and of the Merthyr Tydfil Corporation Water Act 1911 (namely):—

Money borrowed for and in connection with the purchase of land sixty years;

Money borrowed for and in connection with the erection of the asylum forty-five years;

Money borrowed for furniture and fittings in connection with the asylum fifteen years.

(3) The provisions contained in the Merthyr Tydfil Corporation Water Act 1911 with reference to the borrowing and repayment of money shall subject to the provisions of this section extend and apply with any necessary modifications to the borrowing of money by the Merthyr Tydfil Corporation under the powers of this section as if such powers had been conferred by the said Act.

(4) Instead of borrowing money in pursuance of this section the Corporation and the Merthyr Tydfil Corporation may respectively if they think fit apply to the purposes of this section any money received by them in consequence of the dissolution of the agreement to unite made in pursuance of the Lunacy Act 1890 between the Glamorgan County Council the Corporation and the Merthyr Tydfil Corporation Provided that the borrowing powers conferred by this section shall be reduced to

the extent of the amount applied under the provisions of this subsection. A.D. 1912.

102. The loans which have been raised for waterworks purposes in pursuance of the Swansea Corporation Water Act 1892 the Swansea Corporation Water Act 1902 and the Swansea Corporation Water Act 1905 and which are referred to in the Second Schedule to this Act shall be consolidated and so much thereof as remained outstanding on the thirty-first day of March nineteen hundred and twelve shall be repaid within the period of thirty-seven years from that date. Consolidation of waterworks loans.

103.—(1) The Corporation shall have power—

Power to re-borrow.

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

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(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) The following sections are hereby repealed but without prejudice to anything done or suffered to be done thereunder (namely):—

Swansea Corporation Act 1889 section 144;

Swansea Corporation Water Act 1892 section 38;

Swansea Corporation Water Act 1902 section 22;

The Act of 1902 section 120;

So much of section 17 (Application of financial provisions of Act of 1902) of the Swansea Corporation Water Act 1905 as extends and applies to the exercise of the powers of that Act the provisions of section 22 of the Swansea Corporation Water Act 1902.

Power to invest all sinking funds in statutory securities.

104. When under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Power to use one form of mortgage for all purposes.

105.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Third Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Third Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and

A.D. 1912 — descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Power to
use loans
fund instead
of borrowing.

106.—(1) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being forming part of the Swansea Corporation Consolidated Loans Fund (No. 2) (in this section called "the loans fund") and not required for the payment of dividends on Swansea Corporation redeemable stock (in this section called "stock").

(2) When exercising the powers conferred on them by this section the Corporation shall—

(a) Withdraw from the loans fund a sum equal to the amount of the borrowing power proposed to be exercised by the user of moneys in the loans fund and shall determine from which account in the loans fund having amounts to its credit the said sum shall be deemed to be withdrawn;

(b) Transfer at par value an amount of stock equal to the sum withdrawn from the loans fund from the last-named account to the account in respect of which the borrowing power is exercised.

(3) The provisions of the Swansea Corporation Water Act 1892 as amended by the Swansea Order 1903 shall apply to the moneys withdrawn from the loans funds and to the stock so transferred as aforesaid as though such money had been

raised by the issue of further stock and to such transferred stock as though it were stock issued at the date of the transfer. A.D. 1912.

(4) On every transfer of stock as aforesaid when the whole amount of stock standing to the debit of the particular account is not transferred the amounts payable to the loans fund in respect to the stock not transferred shall be such as the Local Government Board approve.

(5) Where in exercise of the powers of this section the Corporation use money forming part of the loans fund and transfer stock in respect thereof the original loan shall pro tanto be deemed to have been paid off as if the amount of stock transferred had been redeemed out of the loans fund.

(6) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

107.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

Power to use sinking fund instead of borrowing.

(a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(b) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed

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to be exercised by the user of moneys from such sinking fund;

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Return to
Local Government
Board as to
sinking
fund.

108.—(1) The treasurer shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or

invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

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(2) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

109.—(1) The Corporation may if they think fit in lieu of themselves making assessing and levying any general district rate order such rate to be made assessed and levied in the same manner as a borough rate and may enforce the payment thereof from the overseers in the same manner as in the case of the borough rate and if any such order be made by the Corporation the general district rate shall be made assessed and levied by the overseers in the same manner and under the same provisions (including the provisions as to appeals) as in the case of the poor rate but subject to the exemptions (partial or otherwise) for the time being applicable to such general district rate in respect of any property in the borough and such rate may be assessed and levied either separately or together with the poor

General district rate may be assessed as borough rate.

A.D. 1912. rate assessed and levied in respect of the hereditaments rateable to such rate:

Provided that the demand note served upon any railway company for any such rate shall show distinctly on the face of it the respective assessments as well as the actual rates proposed in each case to be levied.

(2) In the event of the Corporation making any order in pursuance of this section—

(a) Any other rate for the time being leviable by the Corporation and any water rate rent or charge payable to the Corporation may be included with the poor rate (but distinguished therefrom) in any book or books of assessments and in one demand note. The demand note shall be in such form as the Local Government Board may approve;

(b) The overseers shall recover and enforce the poor rate in the same manner as the general district rate is recoverable and enforceable under the Public Health Act 1875 and the provisions of section 2 (In default of distress for nonpayment of rates justices may issue warrant of commitment) of the Distress for Rates Act 1849 with respect to the recovery and enforcement of the poor rate shall cease to apply. Provided that any provisions limiting the period within which proceedings must be commenced for the recovery of the general district rate in a court of summary jurisdiction shall not apply to the poor rate;

(c) Within the first financial year after the making of such an order the Corporation may notwithstanding anything to the contrary contained in the Waterworks Clauses Act 1847 alter and adjust the dates for the payment and recovery of water rates to correspond as nearly as practicable with the dates and periods for the levying and collection of the poor rate and for the purpose of bringing into operation such adjustment it shall be lawful for the Corporation to demand and recover water rates for two quarters of such financial year at the same time as the overseers are entitled to demand and recover the poor rate and thereafter to demand water rates by two quarterly instalments in advance on the twenty-fifth day of

March and the twenty-ninth day of September in each year but so that the same shall not be recoverable until the expiration of three months from the said twenty-fifth day of March and twenty-ninth day of September respectively.

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110.—(1) In the event of the Corporation making an order in pursuance of the last preceding section of this Act the accounts of the overseers and collectors of poor and other rates relating to the general district rate shall be submitted to and be audited by the district auditor in the manner provided by section 37 (Rates made by overseers not now audited made subject to the audit of district auditor) of the Divided Parishes and Poor Law Amendment Act 1876 and that rate shall be deemed to be a rate within the meaning of that section.

Audit of
accounts.

(2) The expenses of the overseers in connection with the assessment levying and collection of the general district rate shall be paid out of the district fund.

(3) The overseers shall prepare and submit to the district auditor at every audit of their accounts a financial statement in duplicate in the form and containing the particulars from time to time prescribed by the Local Government Board in respect of the general district rate. One of such duplicates shall have the stamp duty chargeable according to the scale contained in the District Auditors Act 1879 affixed thereon and calculated according to the total of the sums paid to the Corporation during the period to which the statement relates and the provisions of the District Auditors Act 1879 as to the duties of the auditor with reference to such duplicates shall apply as if the said duplicates were prepared and submitted under that Act.

(4) The Corporation shall repay to the said overseers the amount of any stamp duty which may be paid by them upon any financial statement pursuant to the provisions of this Act.

(5) The provisions of section 5 (Regulations as to audit) and section 6 (Stamp duties under Inland Revenue) of the District Auditors Act 1879 shall apply to the accounts of the overseers and collectors and to the stamp duty on such financial statements as aforesaid and any overseer who shall fail to comply with the provisions of this Act with respect to a financial statement shall be liable to the penalty provided in section 7 (Failure to submit financial statement) of the last mentioned Act.

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Owner may
be rated in-
stead of
occupier in
certain cases.

111. On an order being made by the Corporation in pursuance of the section of this Act whereof the marginal note is "General district rate may be assessed as borough rate" the following provisions shall apply and have effect (that is to say):—

(1) The owner instead of the occupier may from time to time at the option of the Corporation be rated to the poor borough and general district rates leviable within the borough—

(a) Where the rateable value of the property does not exceed eight pounds; or

(b) Where the premises are let in separate apartments; or

(c) Where the rents are collected weekly:

Provided that the owner so rated shall be entitled to a deduction of seventeen and a half per centum from the amount of the rates when paid by him if he shall pay the same within three months after the rate shall have been made or within two months after the same shall have been demanded whichever shall be the later:

(2) When the Corporation exercise the option under this section of causing the owner to be rated instead of the occupier they shall forthwith give notice thereof to the overseers and the overseers shall rate the owner accordingly and the provisions of this section shall apply within the borough in substitution for the provisions with regard to the rating of owners instead of occupiers which are contained in sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 and in section 211 of the Public Health Act 1875:

(3) Unless and until the Corporation exercise the option given to them by this section the provisions of sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 as amended by the Local Government Act 1894 shall remain in operation and shall extend and apply to the general district rate (in substitution for the said provisions of section 211 of the Public Health Act 1875) in like manner as they apply to the poor rate.

112. Notwithstanding anything to the contrary in any Act contained the Corporation may appoint such number of overseers not exceeding seven for the parish of Swansea as they think fit.

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Number of
overseers.

113. The Corporation may appoint and remove such officers as they deem necessary to assist the overseers of the parish of Swansea in the discharge of their duties and fix the remuneration to be paid to such officers.

Appointment
of officers.

114.—(1) All officers appointed or to be appointed by the Corporation to assist in the discharge of the duties of the overseers of the parish of Swansea and any assistant overseer appointed by the Corporation shall give such security to the Corporation for the due performance of their duties as may be required by the Corporation and the district auditor appointed by the Local Government Board shall report thereon annually to the Corporation and such securities shall be deposited with the Corporation and not with the board of guardians.

Assistant
overseer
and others
to give secu-
rity to Cor-
poration.

(2) Assistant overseers appointed by the Corporation shall not be required to give security to the guardians of the union under section 61 of the Poor Law Amendment Act 1844.

115.—(1) It shall be lawful for the urban district council of Oystermouth and the rural district council of Swansea (each of whom is in this section referred to as "the council") independently of any other borrowing power to borrow at interest any sum or sums of money required for the purposes of paying the costs charges and expenses payable by the council respectively preliminary to and of and incidental to the opposition in Parliament to the Bill for this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons.

Power for
Oyster-
mouth and
Swansea
District
Councils to
borrow for
payment of
costs.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the said urban district council may mortgage or charge the district fund and general district rate of their district and the said rural district council may mortgage or charge the common fund out of which their general expenses are payable.

(3) The council shall pay off all moneys borrowed by them under this section in the case of the said urban district council within a period of five years and in the case of the said rural district council within a period of three years from the passing of this Act.

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(4) The council may raise all or any moneys which they are authorised to borrow under this section either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in the other and the provisions of the Public Health Act 1875 relating to the borrowing and repayment of money (except so much of section 233 of that Act as relates to the sanction of the Local Government Board and subsections (1) (2) and (3) and so much of subsection (4) as relates to the time for which the moneys may be borrowed of section 234 of that Act) shall apply to moneys borrowed by the council under this section.

(5) The clerk to the council shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this section or in respect of any money raised thereunder and at any other time when the Local Government Board require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount if any remaining invested at the end of the year and in the event of any such clerk failing to make such return he shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

If it appears to the Local Government Board by any such return or otherwise that the council have failed to pay any instalment or annual payment required to be paid or to appropriate

any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this section or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

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PART XIII.

MISCELLANEOUS.

116.—(1) The Corporation during the execution and for the purposes of any works authorised by this Act may break up and also temporarily stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house or station or other premises of any railway company in the street from passing along and using the same.

Temporary
stoppage of
streets.

(2) The Corporation shall provide reasonable access for persons bonâ fide going to or returning from any such house station or other premises.

(3) The provisions of this section shall not apply to any street or road belonging to the trustees nor shall the Corporation in exercising the powers of this section obstruct or interfere with the convenient access to any such street or road except with the consent of the trustees under their common seal.

117. For the protection of the Swansea Gaslight Company (in this section called "the company") the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

For protec-
tion of Swan-
sea Gaslight
Company.

- (1) Before commencing any works authorised by Part II. Part III. or Part IV. of this Act in or under any street in or under which any mains pipes syphons tubes or other works (in this section called "apparatus") of the company are situate involving the alteration of the position of any such apparatus or of so altering the surface of the road or footway as to reduce the depth of the apparatus below such

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surface the Corporation shall deliver to the company plans and sections and a description of the work so proposed to be executed so far as it affects such apparatus and (except in the case of emergency) a notice stating the date when it is proposed to commence such works and such plans sections description and notice shall be delivered to the company at least fourteen days before the commencement of any such works:

- (2) If it should appear that such works will interfere with or endanger any of their apparatus or impede the supply of gas the company may within seven days after the delivery of such plans and sections give notice to the Corporation to lower or otherwise alter the position of or to support such apparatus or to substitute temporarily or otherwise other apparatus in such manner as may be necessary and to lay or place under any apparatus cement concrete or other like substance and any difference as to the necessity of such lowering alteration support or substitution laying or placing cement concrete or other like substance shall be settled as hereinafter provided and all such lowering alteration support or substitution laying or placing cement concrete or other like substance shall be done and executed by and at the expense of the Corporation but to the reasonable satisfaction and under the superintendence (if the same be given) of the engineer of the company:

Provided that—

- (a) If the company by notice in writing to the Corporation within seven days after the receipt by them of notice of the intended commencement by the Corporation of any such works so require the company may and shall with all reasonable expedition by their own engineer or workmen do and execute the necessary works of lowering alteration support or substitution of the apparatus of the company or the laying or placing cement concrete or other like substance in the manner agreed between the company and the Corporation or settled as hereinafter provided and the Corporation shall on completion thereof

pay to the company the reasonable expenses actually incurred by them in the execution thereof; A.D. 1912.

(b) If having given such notice in writing the company fail to execute the works with all reasonable expedition the Corporation may notwithstanding such notice themselves execute the works :

(3) The company may if they deem fit employ as many watchmen or inspectors as may be reasonably necessary to watch and inspect the works authorised by Part II. Part III. or Part IV. of this Act whereby any apparatus belonging to them may be interfered with or affected during the construction repair or renewal of such works and the reasonable wages of such watchmen or inspectors shall be borne by the Corporation and be paid by them to the company :

(4) If the Corporation for any of the purposes of this Act take any apparatus belonging to the company in any streets highways roads footpaths lanes courts passages and other places within the limits shown on the deposited plans which are now used by the company for supplying gas in such streets highways roads footpaths lanes courts passages and other places they shall pay to the company the value of such apparatus and the same shall thereupon become the property of the Corporation and the Corporation shall also pay to the company their reasonable charges of removing or altering any of their apparatus in immediate communication therewith which the works of the Corporation shall render useless or which shall be required to be altered :

(5) The expense of all repairs or renewals of any apparatus of the company or any works in connection therewith which may during the construction thereof and for a period of twelve months after the completion thereof be rendered necessary by the acts or defaults of the Corporation their contractors agents workmen or servants or any persons in the employ of them or any or either of them in the exercise of the powers contained in Part II. Part III. or Part IV. of this

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Act or rendered necessary by reason of any subsidence resulting from the works thereby authorised whether during the construction of the said works or for a period of twelve months after the completion thereof shall be borne and paid by the Corporation :

- (6) If any difference shall arise with respect to any matter under this section between the Corporation and the company or their respective engineers or concerning any plans sections or descriptions to be delivered to the company under the provisions of this section the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Confirmation of agreement with Merthyr Tydfil Corporation.

118. The indenture dated the twenty-second day of November nineteen hundred and ten and made between the Corporation of the one part and the Merthyr Tydfil Corporation of the other part set forth in the Fourth Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Power to Corporation to subscribe to hospitals &c.

119. The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Corporation to subscribe to any hospital infirmary nursing institution or other institution of a similar character any sum not exceeding in the whole two hundred pounds per annum.

Power to manufacture slabs &c. from destructor refuse.

120. The Corporation may convert any clinkers or other refuse or surplus material or product arising in connection with their refuse destructor into slabs of artificial stone bricks concrete mortar and other materials and may construct such buildings and works and may in connection therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for making and repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the proceeds arising from any sales thereof to the credit of the district fund. Provided that the Corporation shall not create or permit any nuisance in connection with the working or use of their refuse destructor or in connection with the carrying out of the provisions of this section.

121. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

A.D. 1912.

As to breach of conditions of consent of Corporation.

122. The provisions of the following sections of the Public Health Act 1875 (namely):—

Confirmation of byelaws.

Section 182 Authentication and alteration of byelaws;

Section 183 Power to impose penalties on breach of byelaws;

Section 184 Confirmation of byelaws; and

Section 185 Byelaws to be printed &c.;

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act.

123. All consents given by the Corporation under the provisions of this Act shall be given in writing and unless otherwise prescribed may be given under the hand of the town clerk.

Consent of Corporation to be in writing.

124. Where under the provisions of this Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

125. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

126. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the

Compensation may be in land.

A.D. 1912. case of land for the alienation of, which the consent of any public department is required only with such consent.

Application
of section
265 of Public
Health Act
1875.

127. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Saving for
indictments
&c.

128. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Powers of
Act cumu-
lative.

129. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Judges not
disqualified.

130.—(1) A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or of any local Act for the time being in force in the borough by reason of his being liable to any rate.

(2) Section 141 (Judges not disqualified) of the Act of 1902 is hereby repealed.

Application
of provisions
of Act of
1902.

131. The following provisions of the Act of 1902 shall with any necessary modifications and subject as regards mortgages granted under the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" to the provisions of that section extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Section 45 Correction of errors &c. in deposited plans and book of reference;

- Section 47 Owners may be required to sell parts only of certain lands and buildings; A.D. 1912.
- Section 48 Provisions as to compensation;
- Section 50 Persons under disability may grant easements &c.;
- Section 57 Power to retain sell &c. lands;
- Section 58 Proceeds of sale of surplus lands;
- Section 111 Certain regulations of Public Health Act 1875 as to borrowing not to apply;
- Section 112 Mode of raising money;
- Section 113 Provisions of Public Health Act as to mortgages to apply;
- Section 115 Mode of payment off of money borrowed;
- Section 116 Sinking fund;
- Section 117 Protection of lender from inquiry;
- Section 118 Corporation not to regard trusts;
- Section 119 Appointment of receiver;
- Section 123 Application of money borrowed;
- Section 124 Expenses of execution of Act;
- Section 125 Audit of accounts;
- Section 134 Inquiries by Local Government Board;
- Section 135 Authentication and service of notices;
- Section 136 As to appeal;
- Section 137 Compensation how to be determined;
- Section 138 Recovery of penalties;
- Section 139 Informations by whom to be laid; and
- Section 140 Penalties to be paid over to treasurer:

Provided that—

- (a) In the application of the said section 47 that section shall be read and have effect as if the properties described in the Fifth Schedule to this Act were therein referred to instead of the properties described in the Third Schedule to that Act:
- (b) The said section 48 shall be read and have effect as if the twentieth day of November nineteen hundred and eleven were therein referred to instead of the first day of January nineteen hundred and two.

A.D. 1912.

Certain provisions not to apply in defined areas.

132. The provisions of the sections of this Act, whereof the marginal notes are "Defining the establishment of a new business" and "Discontinuance of offensive trades" shall not apply to or in respect of the areas bounded by a red line on the plan signed in triplicate by the Right Honourable the Earl of Camperdown the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy of which plan has been deposited in the Parliament Office of the House of Lords and one copy in the Private Bill Office of the House of Commons and one copy with the town clerk at his office.

Crown rights.

133. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

134. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or borough rate and out of the district fund or general district rate or out of money to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1912.

THE FIRST SCHEDULE.

(Referred to in section 9.)

**AGREEMENT BETWEEN THE SWANSEA IMPROVEMENTS AND
TRAMWAYS COMPANY AND THE CORPORATION.**

THIS AGREEMENT made the ninth day of November one thousand nine hundred and eleven between the Swansea Improvements and Tramways Company (whose head office is at Electrical Federation Offices Kingsway in the county of London) (hereinafter called "the tramways company") of the one part and the mayor aldermen and burgesses of the county borough of Swansea (hereinafter called "the Corporation") of the other part Whereas under and by virtue of the Swansea Improvements and Tramways Act 1874 the Swansea Improvements and Tramways Act 1878 the Swansea Tramways (Extension) Order 1879 the Swansea Tramways Act 1882 and the Swansea Improvements and Tramways Act 1897 the tramways company have constructed and are working a system of tramways within the borough of Swansea (hereinafter referred to as "the tramways undertaking") And whereas by an indenture of lease dated the twenty-third day of October one thousand nine hundred and six and made between the Corporation of the one part and the tramways company of the other part the Corporation demised unto the tramways company all that the exclusive right of user subject to the provisions of the now reciting indenture of all and singular the tramways described in the First Schedule thereto (hereinafter referred to as "the leased tramways") Together with all powers of the Corporation under the Swansea Corporation Act 1902 of working the tramways and of demanding and taking tolls and charges in respect thereof but subject and without prejudice to the rights powers and privileges of the Corporation as the urban and road authority of the borough of Swansea and also subject and without prejudice to certain rights powers and privileges specified in the Second Schedule thereto for the term of twenty-one years from the twenty-seventh day of April one thousand nine hundred and five at the rents and subject to the lessees' covenants and conditions therein contained And whereas by an indenture of lease also dated the twenty-third day of October one thousand nine hundred and six and made between the Corporation of the one part and the tramways company

A.D. 1912. — of the other part the Corporation demised unto the tramways company the light railways described in the first column of the first part of the First Schedule thereto and coloured blue on the plan annexed thereto (hereinafter referred to as "the leased light railways") Together with all such powers of working the same as are therein referred to and also all and singular the electrical equipment mentioned and described in the second part of the said First Schedule thereto for the term of twenty-one years from the first day of July one thousand nine hundred and five subject to the payment of a yearly rent equal to the interest from time to time payable by the Corporation on the capital properly expended in the construction of the said light railways and on the sum of six thousand six hundred and forty pounds ten shillings being the amount paid by the Corporation to the tramways company for the electrical equipment mentioned and referred to in the second part of the said First Schedule together with a further sum equal to interest at the rate of three per cent. per annum on the said capital by two equal half-yearly payments on the thirty-first day of December and the thirtieth day of June in every year the first of such payments to be deemed to have become due on the thirty-first day of December one thousand nine hundred and five and also in certain events the further rent of nine hundred and twenty-four pounds thirteen shillings and fourpence to be paid in one sum as therein mentioned and subject to and reserving unto the Corporation certain rights powers and privileges specified in the Second Schedule thereto and also subject to the performance of the lessees' covenants and conditions therein contained And whereas by an indenture of lease dated the sixteenth day of December one thousand eight hundred and ninety-nine and made between the Swansea and Mumbles Railways Limited of the first part the Mumbles Railway and Pier Company of the second part and the tramways company of the third part for the consideration therein mentioned the Swansea and Mumbles Railways Limited demised and the Mumbles Railway and Pier Company demised and confirmed unto the tramways company (inter alia) all that railway or tramroad commencing at or near the bottom of Powell Street Strand in the county borough of Swansea and terminating at or near the Elms Oystermouth in the county of Glamorgan and called or known as the Oystermouth Railway or Tramroad for the term of nine hundred and ninety-nine years from the first day of July one thousand eight hundred and ninety-nine And whereas the Corporation are entitled to require the tramways company to sell to them the several portions of the tramways undertaking at varying dates and subject to the provisions as to leasing the same to the tramways company contained in section 34 of the said Act of 1882 And whereas on the first day of November one thousand nine hundred and ten the Corporation with the approval of the Board of Trade duly served notice on the tramways company requiring them to sell to the Corporation the tramways constructed

A.D. 1912.

under the said Act of 1882 And whereas the Corporation and the tramways company are of opinion that it would be to their mutual advantage that the Corporation should be empowered to purchase the whole of the tramway undertaking at the same date and freed from the obligation of leasing the same or any part thereof to the tramways company Now it is hereby agreed by and between the parties hereto as follows:—

1. Notwithstanding anything in the said Acts and Order or the Tramways Act 1870 contained the tramway undertaking shall be purchasable by the Corporation at the time and in the manner hereinafter provided and (except by agreement) not otherwise:—

(a) The Corporation shall be entitled (if by resolution passed in accordance with section 43 of the Tramways Act 1870 they so decide) by giving not less than six calendar months' previous notice in writing to the tramways company to require the tramways company to sell to them on the thirty-first day of December one thousand nine hundred and forty-two or on the expiration of any subsequent period of seven years from such date and thereupon the tramways company shall sell to the Corporation the whole of the tramway undertaking in the said borough as it now exists or may hereafter be extended (including all rights conferred upon or exerciseable by the tramways company under or by virtue of section 95 of the said Act of 1874 and whether exerciseable within or without the borough) upon the terms contained in section 43 of the Tramways Act 1870:

(b) If an order shall be made by the Board of Trade under section 41 or section 42 of the Tramways Act 1870 with reference to the tramways company or the whole or any part of their tramway undertaking the Corporation may require the tramways company to sell and thereupon the tramways company shall sell the whole of their tramway undertaking within the borough as then existing (including all such rights as aforesaid) in the manner and upon the terms contained in section 43 of the said Tramways Act 1870.

2. As from the thirty-first day of December one thousand nine hundred and eleven the said recited leases of the leased tramways and light railways dated the twenty-third day of October one thousand nine hundred and six respectively shall be surrendered by the tramways company to the Corporation and the Corporation shall thereupon grant to the tramways company and the tramways company shall accept new leases of the leased tramways and light railways respectively for terms which shall commence on the first day of January one thousand nine hundred and twelve and expire on the date on which the Corporation shall purchase the tramway undertaking under the last

A.D. 1912. — preceding clause hereof the terms and conditions (other than rents) to be inserted in such new leases shall be the same as those contained in the said existing leases but the rents to be reserved by such new leases shall be as follows:—

(a) In the case of the new lease of the leased tramways the yearly rent shall until the twenty-seventh day of April one thousand nine hundred and nineteen be at the rate of nine hundred and fifty-eight pounds seven shillings and fourpence per annum and after that date at the rate of one thousand one hundred and eighteen pounds two shillings per annum such yearly rent to be paid by equal half-yearly payments on the thirtieth day of June and thirty-first day of December in each year the first payment to be made on the thirtieth day of June one thousand nine hundred and twelve:

(b) In the case of the new lease of the leased light railways the yearly rent shall be a sum equal to the interest from time to time payable by the lessors on the capital properly expended in the construction of the said light railways and on the sum of six thousand six hundred and forty pounds ten shillings referred to in the existing lease of such light railways (after deduction of property tax) together with a further sum equal to interest at three per cent. per annum on the said capital (after such deduction as aforesaid) such rent to be paid by two equal half-yearly payments on the thirtieth day of June and thirty-first day of December in every year the first of such payments to become due on the thirtieth day of June one thousand nine hundred and twelve and also by way of further rent in each year of the said term a sum equal to two per cent. on the gross profit earned by the tramways company in such year on the whole of the tramways and light railways worked by the tramways company such further rent to be paid on or before the thirty-first day of March following next after the expiration of such year the said gross profit to be arrived at by taking the total receipts of the tramways company in such year from the working of the tramways and light railways including all advertising and sundry receipts in connection with the tramways and light railway undertaking of the tramways company for the time being and deducting therefrom the following expenses in such year namely (a) Power and running expenses (b) Cost of repairs and maintenance (other than renewals) (c) Expenses of parcels traffic (d) Rates and taxes insurances rents (other than rents payable to the Corporation under any lease of tramways or light railways) directors' remuneration auditors' fees and office travelling and general expenses and (e) Any contribu-

tions (not exceeding one hundred and fifty pounds) to the British Electrical Friendly Society and Superannuation Fund A.D. 1912.
No other deductions shall be made in ascertaining the said gross profit and in particular (but without prejudice to the generality of this clause) no deduction shall be made for interest on or provision for repayment of capital or moneys borrowed or any provision for or transfer to renewals or depreciation or reserve funds or any rents payable to the Corporation under any lease of tramways or light railways. The costs and expenses of and relating to such surrenders and new leases including all stamps and duties whatsoever payable thereon or in consequence thereof shall be paid by the company.

3. If and when the Corporation shall purchase the tramway undertaking the tramways company shall so long as they shall be in possession as lessees or otherwise of the Swansea and Mumbles Railway enter into an agreement with the Corporation in terms (so far as may be applicable) of the order of the Railway Commissioners of the thirty-first day of March one thousand eight hundred and ninety-six and during such agreement the Corporation shall not exercise any of the powers conferred upon the owners of the tramways by section 95 of the Swansea Improvements and Tramways Act 1874.

4. The Corporation shall so soon as they can conveniently do so apply for powers to construct and work and on obtaining such powers shall within a reasonable time thereafter construct and equip for working by electric traction on the overhead system the tramways or light railways hereinafter described:—

- (a) A tramway or light railway commencing at the present terminus of the tramways of the tramways company at the southern end of High Street proceeding thence along Castle Street and terminating by a junction or junctions with the existing tramways in Temple Street and Wind Street:
- (b) A tramway or light railway commencing by a junction with the existing tramways in Quay Parade and terminating by a junction with the existing tramways in Harbour Road:
- (c) A tramway or light railway commencing by a junction with the existing tramways in Oxford Street near to Beach Street proceeding thence along Oxford Street and terminating by a junction with the existing tramways in St. Helen's Road.

The equipment of such tramways or light railways shall not be deemed to include the provision of rolling stock.

So soon as the said tramways or light railways shall have been constructed and equipped as aforesaid the Corporation shall grant and the tramways company shall take a lease thereof for a term which shall expire at the date when the Corporation shall purchase the tramway undertaking and at a rent equal to the interest from time to time

A.D. 1912. payable by the Corporation on the capital properly expended in the construction and equipment of the said tramways or light railways such expenditure not to include any cost or expense of or incidental to street widening (after deduction of income tax) together with a further sum equal to interest at the rate of three per cent. per annum on the capital so expended as aforesaid (after deducting as aforesaid) The other terms and conditions to be contained in such lease shall be the same in all respects as those contained in the hereinbefore recited lease of the leased light railways of the twenty-third day of October one thousand nine hundred and six.

5. If at any time before the Corporation shall have given notice under clause 1 hereof to purchase the tramways undertaking they shall have constructed any additional tramways or light railways (other than cable tramways) beyond those specified in paragraph 4 hereof the Corporation shall grant and the tramways company shall accept a lease thereof for a term to expire at the date when the Corporation purchase the tramway undertaking and at such rent or rents and subject to such covenants terms and conditions as in default of agreement shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either party it being an instruction to such arbitrator that the said rents terms and conditions are to be such as not to involve the tramways company in any loss in the working of such additional tramways or light railways.

6. If the tramways company at any time hereafter work by electrical power any tramways or light railways within the said borough in addition to those now worked by them by electrical power the tramways company shall if the Corporation so require take from the Corporation all such electrical energy as may be necessary for moving and lighting the cars and rolling stock to be run on the said tramways or light railways or otherwise for working such tramways or light railways on the same terms and subject to the same provisions as are contained in the Third Schedule to the said recited lease of the leased light railways of the twenty-third day of October one thousand nine hundred and six Provided always that in arriving at the minimum number of Board of Trade units specified in such Third Schedule the number of such units which may be supplied by the Corporation to the tramways company in connection with the leased tramways and light railways shall be taken into account Provided also that in case of the failure of the Corporation in any year to supply the minimum quantity specified in the said Third Schedule the tramways company shall for such year only pay the specified price per unit for the current actually supplied.

7. The tramways company shall on every day in the year (Sundays Christmas Days Good Fridays and Bank Holidays excepted) permit artisans mechanics and daily labourers (which words shall have the same meaning as in the Swansea Improvements and Tramways Act

1874) to travel by any of the cars running on the tramways or light railways owned or worked by or leased to the tramways company at fares not exceeding one halfpenny per mile or fraction of a mile with a minimum fare of one penny. Provided always that every such artisan mechanic or daily labourer shall produce on demand to the conductor of the car or other authorised officer of the tramways company a certificate from his union or employer or such other evidence as shall be satisfactory to the tramways company that he is an artisan mechanic or daily labourer as above defined. Provided also that the tramways company shall not be bound to run special cars for the conveyance of such artisans mechanics and daily labourers but shall always run a sufficient service of cars between the hours of five and seven in the morning of every day in the year except such days as aforesaid. A.D. 1912.

8. This agreement is conditional on an Act being passed in the next available session of Parliament for the confirmation thereof comprising or giving effect thereto and repealing sections 34 and 35 of the said Act of 1882. The Corporation will at their own cost promote a Bill for such an Act in the ensuing session and the tramways company shall at their own expense if required by the Corporation consent to and support such Bill so far as the same confirms or gives effect to this agreement.

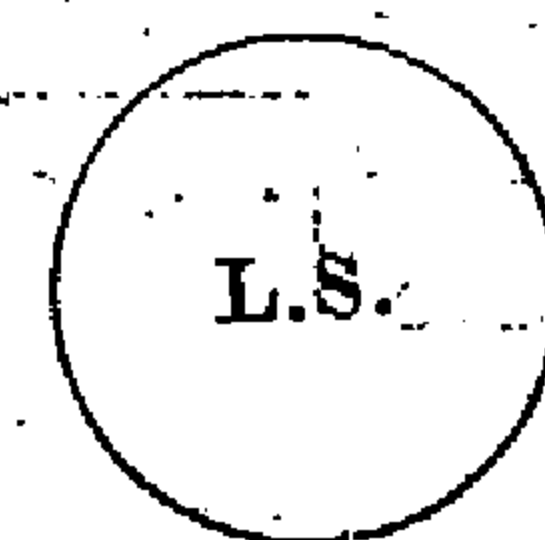
9. If this agreement shall be confirmed or given effect to as provided by the last preceding clause hereof the notice served on the first day of November one thousand nine hundred and ten by the Corporation upon the tramways company requiring them to sell the tramways constructed under the said Act of 1882 shall be deemed to be cancelled but if this agreement shall not be so confirmed or given effect to the said notice shall remain in full force and virtue. Pending the promotion of the Bill referred to in the last preceding clause hereof no proceedings shall be taken under the said notice.

10. This agreement is subject to such alterations as Parliament may think fit to make therein but if the Committee on the Bill in either House of Parliament make any material alterations herein it shall be competent to either party to withdraw the same.

In witness whereof the tramways company and the Corporation have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Swansea Improvements and Tramways Company was hereunto affixed pursuant to a resolution of the board of directors in the presence of

C. E. TEGETMEIER }
GEO. J. SOMERVILLE } Directors.
S. J. CLEMENTS Secretary.



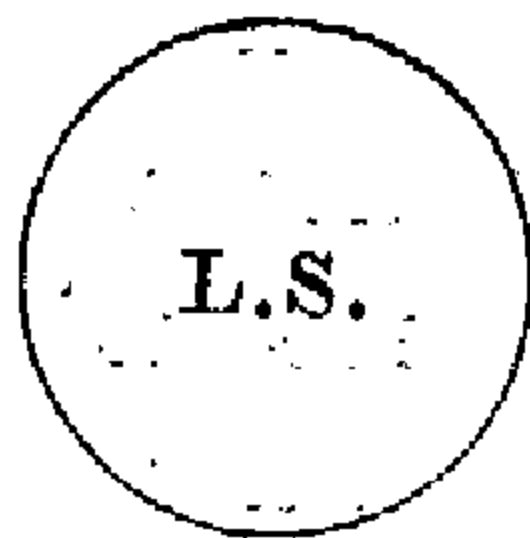
A.D. 1912. The common seal of the mayor
aldermen and burgesses of
the county borough of Swan-
sea affixed by the mayor for
the time being in the pre-
sence of

H. LANG COATH Town Clerk
Swansea.

}

DAVID MATTHEWS

Mayor.



THE SECOND SCHEDULE.
(Referred to in section 102.)

STATEMENT OF WATERWORKS LOANS.

1.	2.	3.	4.	5.	6.	7.	8.
Authority for borrowing.	Amount authorised.	Period pre-scribed for Repay-ment.	Stock or Mortgage.	Period remain-ing on 31st March 1912.	Amount borrowed including Discount and Expenses of Issue of Stock.	Loans Fund and Sinking Fund in hand 31st March 1912.	Balance of Loan outstanding after deducting Loans Fund and Sinking Fund in hand.
	£ s. d.	Years		Years	£ s. d.	£ s. d.	£ s. d.
Swansea Corporation Water Act 1892.	270,000 0 0	60	Stock	40 $\frac{1}{4}$	62,807 16 0	6,354 6 6	56,453 9 6
			Do.	40 $\frac{1}{4}$	35,533 18 6	3,541 2 11	31,992 15 7
			Do.	47 $\frac{3}{4}$	19,372 15 11	1,413 16 11	17,958 19 0
			Do.	48 $\frac{3}{4}$	15,307 0 6	995 16 10	14,311 3 8
			Do.	49 $\frac{3}{4}$	93,089 6 11	5,340 6 11	87,749 0 0
			Mortgages	40 $\frac{1}{4}$	12,003 13 8	1,214 9 11	10,789 3 9
Swansea Corporation Water Act 1892 and sanction of Local Government Board dated 3rd August 1898.	100,000 0 0	30	Stock	47	1,025 13 6	103 11 9	922 1 9
			Do.	51	41,340 14 10	2,134 8 0	39,206 6 10
			Do.	21	22,795 14 8	4,502 19 8	18,292 15 0
Swansea Corporation Water Act 1902.	71,000 0 0	60	Do.	22	79,768 7 4	11,794 2 10	67,974 4 6
			Stock	52	16,622 11 8	700 18 10	15,921 12 10
			Do.	53	56,197 18 7	2,279 15 9	53,918 2 10
			Stock	23 $\frac{1}{4}$	51,659 7 8	7,027 6 5	44,632 1 3
			Do.	24 $\frac{1}{4}$	33,299 10 6	3,715 19 9	29,583 10 9
			Do.	25 $\frac{1}{4}$	3,196 15 1	281 2 0	2,915 13 1
Swansea Corporation Water Act 1905.	250,000 0 0	30	Do.	26 $\frac{1}{4}$	969 12 2	62 18 2	906 14 0
			Do.	27 $\frac{1}{4}$	118 6 6	5 1 0	113 5 6
			Do.	28	130,256 3 5	5,557 18 3	124,698 5 2
			Mortgages	24 $\frac{1}{4}$	17,012 0 5	1,898 8 8	15,113 11 9
			Do.	25 $\frac{1}{4}$	3,287 19 7	289 2 10	2,998 16 9
Discount and expenses less premium.	691,000 0 0	30	Balance of sanction		695,665 7 5	59,213 13 11	636,451 13 6
	20,355 1 9				15,687 14 4	—	15,687 14 4
	£ 711,355 1 9				£ 711,353 1 9	59,213 13 11	652,139 7 10

THE THIRD SCHEDULE.
(Referred to in section 105.)

A.D. 1912.

FORM OF MORTGAGE.

By virtue of the Swansea Corporation Act 1912 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Swansea (hereinafter referred to as "the Corporation") in consideration of the sum of

pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by

(hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of

per centum per annum from the day of one thousand nine hundred and until payment of the principal sum such interest to be paid half-yearly on the day of and the

day of in each year And it is hereby agreed that the principal sum shall be repaid at in the said borough [(subject as hereinafter provided) on the day of one thousand nine hundred and] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned in an endorsement to be made hereon under the hand of the mayor and town clerk of the said borough for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of one thousand nine hundred and

A.D. 1912.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting
the within-mentioned time for repayment of the within-mentioned
principal sum of _____
is hereby extended to the _____ day of _____
_____ one thousand nine hundred and _____ [and the interest
to be paid thereon on and from the _____ day of _____
one thousand nine hundred and _____ is hereby declared to be
at the rate of _____ per centum per annum].

Dated this _____ day of _____ one thousand
nine hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____
[of _____] in consideration of the
sum of _____ pounds paid
to me by _____ of _____
(hereinafter referred to as "the transferee") do hereby transfer to the
transferee [his] executors administrators and assigns [the within-written
security] [the mortgage number _____ of the revenues of the
mayor aldermen and burgesses of the borough of Swansea bearing date
the _____ day of _____] and all my right
and interest under the same subject to the several conditions on which
I hold the same at the time of the execution hereof and I the transferee
for myself my executors administrators and assigns do hereby agree to
take the said mortgage security subject to the same conditions.

Dated this _____ day of _____ one thousand
nine hundred and _____

THE FOURTH SCHEDULE.
(Referred to in section 118.)

AGREEMENT BETWEEN THE CORPORATION AND THE MERTHYR
TYDFIL CORPORATION.

THIS INDENTURE made the twenty-second day of November one
thousand nine hundred and ten between the mayor aldermen and
burgesses of the county borough of Swansea (hereinafter called "the
corporation of Swansea") of the one part and the mayor aldermen
and burgesses of the county borough of Merthyr Tydfil (hereinafter
called "the corporation of Merthyr Tydfil") of the other part Whereas

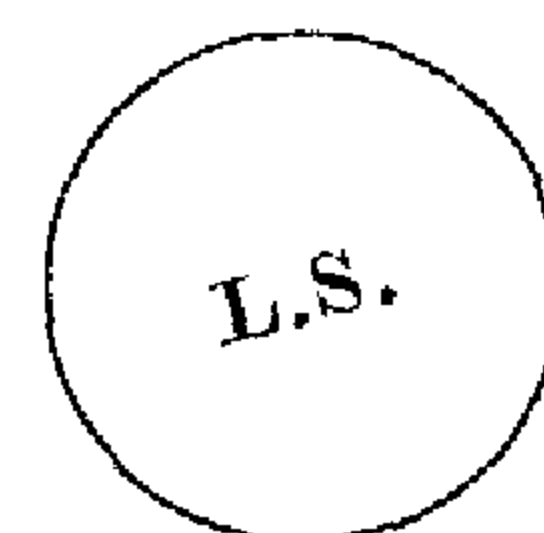
A.D. 1912.

by an agreement bearing even date with these presents and made between the visiting committees for the county borough of Swansea and the county borough of Merthyr Tydfil it has been agreed that the said county boroughs shall be united for the purpose of providing an asylum for the reception of lunatics And whereas in consideration of the site of the said asylum being situate in or near to the county borough of Swansea the corporation of Swansea have agreed to pay to the corporation of Merthyr Tydfil the sum of three hundred pounds per annum in the event and at the times hereinafter specified Now this indenture witnesseth in pursuance of the said agreement and in consideration of the premises that if and when the boundaries of the existing county borough of Swansea are extended so as to comprise and include the district in which the asylum is situate the corporation of Swansea hereby covenant to pay to the corporation of Merthyr Tydfil during the continuance of the hereinbefore-mentioned agreement to unite the sum of three hundred pounds per annum such payment to become due and be payable at the expiration of one year from the date when the boundaries of the existing county borough are so extended and subsequently on the same date in every succeeding year And it is hereby agreed and declared that upon the promotion of a Bill in Parliament by either the corporation of Swansea or the corporation of Merthyr Tydfil whichever shall first happen the corporation promoting such Bill shall and will make application to Parliament to authorise and confirm the arrangement in these presents contained and the other corporation shall and will support such application.

In witness whereof the corporation of Swansea and the corporation of Merthyr Tydfil have hereunto affixed their respective common seals the day and year first before written.

The common seal of the mayor
aldermen and burgesses of the
county borough of Swansea
affixed by the mayor for the
time being in the presence of

D^D MATTHEWS
Mayor.

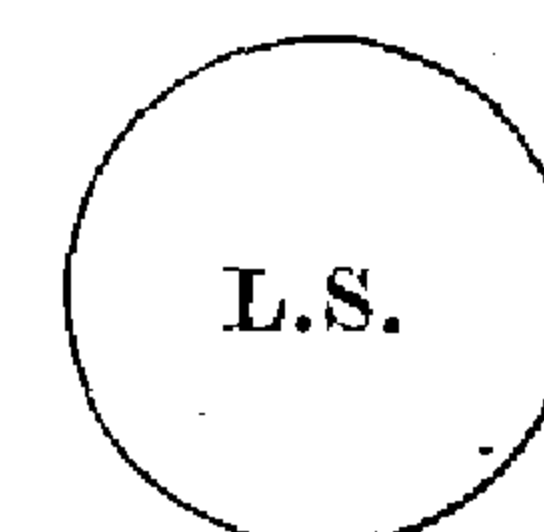


D. C. JOHN Deputy Town Clerk
Swansea.

The common seal of the mayor aldermen and
burgesses of the county borough of Merthyr
Tydfil affixed by the mayor for the time being in
the presence of

R. EVANS Mayor.

T. ANEURYN REES Town Clerk.



A.D. 1912.

THE FIFTH SCHEDULE.

(Referred to in section 131.)

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY
BE TAKEN.

Area.	Nos. on deposited Plans.
Borough of Swansea -	62 to 76 78 to 92 94 95 97 99 100 112 to 114 116 to 126 128 to 131 135 to 142 144 to 147 149 to 158 160 to 163 167 to 176 178 to 180 182 to 213 215 to 242 244 to 256 287 to 289 294 to 297 299 to 301 303 to 310 514 to 519 521 522 527 to 536 538 540 to 599 601 to 617 619 to 627 631 639 to 663 666 to 672 687 to 729 731 to 739 744 to 746 748 749 751 to 758 865.

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